

OMNITRUST ECOSYSTEM ALLIANCE AGREEMENT ("Agreement")

by and between

[Partner name]

[Partner Address]

("Partner")

and

OmniTrust Security LLC

20130 Lakeview Center Plaza, Suite 415

Ashburn VA 20147

USA

("OmniTrust")

as of

the [Day] day of [Month] 20__ ("Effective Date")

Partner and OmniTrust hereinafter individually referred to as a "**Party**" and collectively as the "**Parties**"

WHEREAS, OmniTrust provides trust lifecycle management, identity, cryptographic, device, AI, and operational trust infrastructure solutions;

WHEREAS, Partner provides products, technologies, platforms, software, services, or solutions relevant to the Parties' shared ecosystem interests;

WHEREAS, the Parties desire to collaborate regarding interoperability, integrations, ecosystem participation, joint solution enablement, marketing, and customer engagement activities;

NOW THEREFORE, the Parties agree on the following terms and conditions:

1. Framework of the Cooperation

This Agreement establishes the general terms governing the alliance relationship between the Parties.

Specific collaboration activities, integrations, partner classifications, technical scopes, branding rights, commercial rights, or additional obligations may be further defined in separate exhibits, addendums, or alliance attachments executed by the Parties ("Alliance Addendums").

An Alliance Addendum shall not exceed the bounds of this Agreement, although OmniTrust and its Partner may explore other contracting solutions if the need arises.

2. Subject Matter of Alliance Addenda

The Alliance Addenda define the specific activities that the Parties will be undertaking. OmniTrust and Partner may agree to more than one Alliance Addenda.

Alliance Addenda include, but are not limited to:

- website cross-linking;
- partner directory or partner listing inclusion;
- co-marketing activities;
- customer engagement activities;
- demonstrations, workshops, and events;
- joint solution alignment;
- ecosystem participation;
- interoperability and integrations;
- APIs, connectors, and technical enablement;
- reference architectures and validation activities.

Neither Party is obligated to engaging in activities defined in an Alliance Addenda without executing the Alliance Addenda. By signing this Agreement, neither Party is obligated to any minimum level of engagement or to engagement on a particular Alliance Addenda, without executed an Alliance Addenda.

3. Provision of Benefits

Subject to Partner's compliance with the terms and conditions of this Agreement and the relevant Alliance Addenda, OmniTrust will provide Partner with benefits as specified in such Alliance Addenda (hereinafter referred to as "**Benefits**").

4. Partner Commitments

In return for the Benefits, Partner shall fulfil the commitments as specified in the relevant Alliance Addenda (hereinafter referred to as "**Partner Commitments**").

5. Marketing and Commercial Relationships

The Parties agree to promote their joint efforts in connection with this Agreement according to the principles set out in the relevant Alliance Addenda.

5.1 Approval Rights: A Party must receive prior written approval from the other Party prior to doing any of the following:

- Issuing a press release or making a public announcement discussing or disclosing the existence of this Agreement or any activity under this Agreement or an Alliance Addendum;
- Performing a case study or any type of competitive analysis on the other Party's product offering;

- Making any public customer reference;
- Using the other Party's logo(s) or trademark(s) in any public-facing communication; or
- Asserting interoperability or certification in any public-facing communication.

Prior written approval may be made via electronic mail (e-mail).

5.2 Branding Guidelines

Each Party agrees to comply with the other Party's reasonable branding, logo, and trademark usage guidelines ("Branding Guidelines"). Each Party will publish their Branding Guidelines to the other Party. If a Party is deviating from the known Branding Guidelines of the other Party, it shall receive prior written permission.

5.3 Logo & Trademark Usage

Subject to this Agreement and any applicable branding guidelines, each Party grants the other Party a limited, revocable, non-exclusive, non-transferable right to use its name, logo, and trademarks solely in connection with authorized alliance activities.

OmniTrust's Branding Guidelines describing allowed usages of its marks and logos is attached to this Agreement as Exhibit 1.

5.4 Customer & Commercial Relationships

This Agreement, including any attached Alliance Addenda, does not, and shall not be construed to, establish any reseller rights, referral rights, distribution rights, OEM rights, commission structures, or revenue-sharing arrangements.

The Party's acknowledge that they are free to enter into such an agreement separately. Each Party to this Agreement (1) independently markets and sells its own products and services; (2) independently contracts with customers; and (3) independently sets pricing and commercial terms.

6. **Intellectual Property Ownership and Integration Activities**

- 6.1 "Intellectual Property" means any patent rights, copyrights (whether registered or unregistered), registered trademarks, common law trademarks, trademark registration applications, trade secrets, moral rights, rights of publicity, goodwill and other intellectual property rights as may exist now and/or hereafter come into existence and all renewals and extensions thereof regardless of whether such rights are registered and regardless of whether such rights arise under the laws of any country, state or other jurisdiction.
- 6.2 The Alliance Addenda executed between and by the Parties may mutually agree to various activities involving the Party's respective technology and know-how :
- exchange technical information;
 - develop integrations or connectors;
 - validate interoperability;
 - provide API or SDK access;
 - publish deployment or integration guidance.
- 6.3 Other than potentially granting one another development licenses pursuant to certain of the Alliance Addenda, if executed, neither Party grants the other Party any license to use, sub-license, distribute, create derivatives from, or resell any of their Intellectual Property.

- 6.4 Under this Agreement, including all Alliance Addenda, each Party retains ownership of its respective:
- Intellectual Property;
 - Products;
 - Proprietary software;
 - APIs;
 - Documentation; and
 - know-how.
- 6.5 This Agreement shall not be construed as to transfer any Intellectual Property rights owned by the Parties.

7. Confidentiality and Security

- 7.1 The Parties have entered a mutual non-disclosure agreement ("MNDA") which is incorporated herein by reference. The MNDA shall be deemed to be in full force and effect for at least the duration of this Agreement. The MNDA defines the Parties obligations with respect to protecting one another's confidential information.
- 7.2 The Parties shall treat the terms and conditions of this Agreement as well as of the respective Alliance Addenda confidential and not disclose them to third parties without the other Party's prior written consent.
- 7.3 Each Party remains solely responsible for the security of its own products and services, security obligations, vulnerability management, compliance obligations, and operational environments.
- 7.4 The Parties acknowledge that any Alliance Addenda dealing with interoperability or integration does not create shared security responsibility or liability.

8. Limited Warranty

TO THE MAXIMUM EXTENT ALLOWABLE BY LAW, THE PARTIES EXPRESSLY DISCLAIM ALL WARRANTIES UNDER THIS AGREEMENT AND ALL ITS ALLIANCE ADDENDA, INCLUDING ANY IMPLIED WARRANTIES (1) OF MERCHANTABILITY, SATISFACTORY QUALITY, FITNESS FOR A PARTICULAR PURPOSE, OR QUIET ENJOYMENT; (2) ARISING OUT OF ANY COURSE OF DEALING OR USAGE OF TRADE; AND (3) THAT ANY ASPECT OF THEIR INTELLECTUAL PROPERTY WILL BE UNINTERRUPTED AND ERROR FREE.

All information exchanged by the Parties, including but not limited to software, APIs, documentation are provided "AS IS".

9. Liability

- 9.1 Nothing in this Agreement and/or any respective Alliance Addenda shall limit or exclude Party's liability under mandatory liability laws, for injuries to life, body or health, for fraudulent concealment of defects, or intentional misconduct or gross negligence.
- 9.2 Without prejudice to Section 9.1, above, in cases of a Party's merely negligent breach of any obligation under this Agreement and/or any respective Alliance Addenda that restricts or diminishes essential rights or duties arising from the nature of this Agreement and/or the respective Alliance Addenda in a way that there is a risk of non-achievement of the purpose of this Agreement and/or the respective Alliance Addenda or of an obligation whose observance a Party regularly may trust in and

whereas compliance with only makes proper execution of this Agreement and/or the respective Alliance Addenda possible, the Party's liability shall be limited to the typically, foreseeable compensatory damage.

- 9.3 Without prejudice to Sections 9.1 and 9.2, a Party's liability under this Agreement and/or the respective Alliance Addenda shall be excluded in all other cases.

10. Term and Termination

- 10.1 This Agreement and each Alliance Addenda shall become effective on the Effective Date and shall remain in effect for a period of Three (3) years, thereafter ("**Initial Term**"). This Initial Term shall be automatically extended for successive periods of one (1) year, unless otherwise terminated by either Party in accordance with this Section 10.
- 10.2 This Agreement or any Alliance Addenda may be terminated by either Party by giving one (1) month prior written notice to the other Party. Nevertheless and to the extent applicable, Partner acknowledges and agrees to stop using OmniTrust's partner signet and logo immediately after said prior written notice is sent by Partner to OmniTrust or received by Partner from OmniTrust. The termination of this Agreement shall automatically terminate any Alliance Addenda. The right of extraordinary termination for cause shall remain unaffected.
- 10.3 Upon termination of this Agreement or upon termination of any Alliance Addenda, OmniTrust shall stop providing and Partner shall stop exercising any Benefits unless otherwise agreed in writing, and Partner shall stop providing and OmniTrust shall stop requiring Partner's Commitments unless otherwise agreed in writing.

11. Export Control

- 11.1 It is the responsibility of Partner to comply with all applicable export control, anti-terrorism and trade laws and regulations as well as applicable national laws, as relevant to any goods, technologies, information or services purchased or received from OmniTrust ("Foreign Trade Regulations"). Insofar as Partner incorporates any goods, technologies, information or services delivered by OmniTrust into any items, Partner agrees and confirms that Partner shall not export or re-export, directly or indirectly, those items to any country, destination, or individual, for which an export authorization or other governmental or official approval is required, without first obtaining such authorization or approval.
- 11.2 Any goods, technologies, information or services under this Agreement (including those provided or to be provided under a purchase order) may be subject to necessary export authorizations being granted. When such authorization cannot be obtained, the agreement or the affected purchase shall be void per OmniTrust's notice.
- 11.3 Partner shall not use, directly or indirectly, any information, technologies or services delivered by OmniTrust for nuclear technology, weapons of mass destruction, or carriers thereof. Further, except for memory solution goods, technology or services, Partner shall not use any information, technologies or services delivered by OmniTrust in weapon systems.
- 11.4 Any information, technologies or services that are controlled and subject to applicable national export licenses shall not be supplied to military, paramilitary, police, intelligence agencies or civil administrations of such institutions or other institutions acting on behalf of them.
- 11.5 In case of breach of any of the obligations mentioned, the termination rules as agreed between the Parties shall apply and OmniTrust shall be entitled to seize adequate

measures without any liability including termination of this Agreement or any individual purchase agreement entered into hereunder. OmniTrust shall communicate the reason for termination or other measures to Partner without undue delay. OmniTrust may also be required to inform competent export control authorities.

12. Governing law / Dispute Resolution

- 12.1 This Agreement shall be governed by and construed in accordance with the law of the State of Delaware, U.S.A., without reference to its conflict of law provisions. The application of the United Nations Convention on Contracts for the International Sale of Goods of 11 April 1980 shall be excluded.
- 12.2 The exclusive place of jurisdiction for all legal disputes arising out of or in connection with this Agreement shall be the State of Delaware, U.S.A. However, nothing in this Agreement shall preclude either Party from seeking interim measures of protection in any court of competent jurisdiction.

13. Miscellaneous

- 13.1 Partner may not assign this Agreement, transfer its obligations or assign its rights hereunder without the prior written consent of OmniTrust.
- 13.2 Nothing in this Agreement is intended or shall be construed as to one Party being considered or permitted to be an agent of the other Party. This Agreement, including any attached Alliance Addenda, does not, and shall not be construed to, establish any joint venture. The Parties to this Agreement are independent contractors.
- 13.3 Any additions or amendments to this Agreement shall only be valid if made in writing and signed by the Parties; this written form requirement shall also be considered fulfilled where signatures are exchanged electronically on scanned copies via fax or email (PDF scan), or an electronic signature process is used (e.g. DocuSign or Adobe Sign). This written form requirement can only be waived or changed as set forth in the preceding sentence.
- 13.4 The effectiveness of this Agreement shall not be impaired if any provision of this Agreement should be completely or partially invalid or unenforceable. In this case, the Parties shall agree on a provision that meets the economical intention of the invalid or unenforceable provision.
- 13.5 This Agreement, and its attached and executed Alliance Addenda and exhibits, constitutes the entire agreement between the Parties hereto with respect to the subject matter hereof and supersedes all previous communications, discussions, understandings, agreements and negotiations between the Parties with respect to such subject matter hereof.
- 13.6 The terms and conditions of this Agreement shall also apply to the relevant Alliance Addenda. In case of conflict of any provision of this Agreement with any Alliance Addenda, the provision of this Agreement shall prevail.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed by their respective duly authorized representatives:

OmniTrust Security LLC

PARTNER

By: _____

By: _____

(authorized signature)

(Authorized Signature)

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____

Exhibit 1 – OmniTrust logo

